MINUTES OF A PUBLIC HEARING & BUSINESS MEETING OF THE PINEYWOODS GROUNDWATER CONSERVATION DISTRICT HELD ON THE 5th DAY OF AUGUST, 2024

On the 5th day of August, 2024, 1:30 p.m. at Kurth Lake Lodge, Kurth Lake, Angelina County, Texas, the Board of Directors of the Pineywoods Groundwater Conservation District convened in a Public Hearing & Regular Business meeting at which time the following items were discussed and action taken with the following members thereof, to wit:

Public Hearing

Subject: Angelina WSC new water well application on Schoolcraft Road, just off Fm 326, for 75 million gallons per year, and increases to production on existing well permits.

1 **Open Public Hearing by & time:** President Jimmy Mize – 1:34
2 **Comments:** None
3 **Close Public Hearing by & time:** President Jimmy Mize – 1:35

Business Meeting

1 Call to Order & establish a quorum:
Called to order: President Jimmy Mize
Start time: 1:36
Board Members Present:
President – Jimmy Mize
Vice-President – Kevin Gee
Secretary – Gloria Montes
Director – Stephen Raley
Director – Roger Russell
Director – Greg Grigsby

Absent:
Treasurer – Tommy Carswell

Also present:
PGCD General Mgr. – John McFarland
PGCD Admin. Assistant – Wil Blough
Atty. Tim Karczewski

2 Public Comments: None

3 Approval of the minutes of the meeting, May 28, 2024:
a. Discussion: None
b. Motion to approve: Stephen Raley **Second:** Greg Grigsby
c. Motion Carried? Yes

4 Presentation by Tim Karczewski of Skelton Slusher Barnhill Watkins & Wells law firm. "How To Handle Exporting Water Out Of The District"
a. Discussion: Tim suggested we look at other Groundwater Districts in the area and their rules on how to handle exporting water from the District and update accordingly. John to get proposed changes together by next business meeting so that we can update the rules by early 2025.

5 **Review and possibly approve application of new permit for Angelina WSC, well #5, & increases to permitted amounts for wells 2, 3, & 4:**

a. **Discussion:** Talked about the need for increase on the existing well permits since they are at 80% of the permitted amount. Consensus was that this should not be a problem. Also discussed impact on the nearest irrigation well to the new well site. Roger said that should not be a problem based on factors mentioned in the report. Motion to approve as requested.

b. **Motion:** Kevin Gee **Second:** Roger Russell

c. **Motion Carried?** Yes

6 **General Manager's Financial Report: (Review bills, banking & other financials)**

a. **Discussion:** Several large, but normal, expenses in this quarter. Income down in permit renewals as expected. Production income down due to high rainfall.

b. **Motion to approve:** Stephen Raley **Second:** Greg Grigsby

c. **Motion carried?** Yes

7 **Review & possibly approve 2nd quarter 2024 investment report:**

a. **Discussion:** Appears interest rates are going into a down cycle. May want to move some out of TexPool and into CD's. John to look into that.

b. **Motion to approve:** Stephen Raley **Second:** Greg Grigsby

c. **Motion carried?** Yes

8 **General Manager's District Report:**

a. **Well Report:** 15 exempt, 5 non-exempt, 1 Rig Supply, 2 Production Fee Based

b. **District updates:** Attended Hudson WSC meeting & Nacogdoches County Realtors meeting. Also attended Environmental Conference in Longview, GMA 11 mtg., & Regional Water Planning Group D mtg. Responded to multiple requests for well drillers in the area along with other well information.

9 **Appoint budget committee for 2025 budget:**

a. **Discussion:** Asked for nominations. Gloria, Stephen, & Jimmy nominated

b. **Motion to approve:** Kevin Gee **Second:** Greg Grigsby

c. **Motion carried?** Yes

10 **Announcement of the date and location of the next quarterly business meeting:**

a. **Tentative Date:** Budget mtg - 11:00 a.m., Nov. 7; Quarterly Mtg – Nov. 18

11 **Adjourn:**

a. **Closed by & Time:** President Jimmy Mize, 2:43 p.m.

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Jimmy Mize, President Gloria Montes, Secretary